

LEARNER WORKBOOK SECTION

FORMATIVE ASSESSMENT (OPEN BOOK EXAM)

DEMONSTRATE KNOWLEDGE OF THE FIREARMS CONTROL ACT 2000 (ACT NO. 60 OF 2000) - UNIT STANDARD 117705

Full Name and Surname: _____

ID Number: _____ Date of Assessment: _____

Name of Assessor: _____

Learner Signature: _____ Assessor Signature: _____

Pass mark is 70% (98 out of 140)

Competent: ☐

Not Yet Competent: ☐

SKILLS PROGRAM 2
BOOK 4



Definitions

1. Give the definition of the following word: **(1 Mark)**

Airgun:

2. Give the definition of the following word: **(1 Mark)**

Fully automatic:

3. Give the definition of the following word: **(1 Mark)**

Occasional sports person:

Prohibitions

4. Complete the following sentence: (Section 3) **(1 Mark)**
No person may possess a firearm unless he or she holds

Prohibited firearms (Section 4)

5. Which of the following are regarded as prohibited firearms: (choose 5) **(5 Marks)**
- a. Any fully automatic firearm
 - b. An airgun
 - c. Any gun, cannon, recoilless gun, mortar, light mortar or launcher manufactured to fire a rocket, grenade, self-propelled grenade and bomb or explosive device.
 - d. Any explosive powered tool manufactured specifically for the use in industrial application, including line-throwing guns and impex-type building pistols.
 - e. Any frame, body or barrel of such a fully automatic firearm, gun, cannon, recoilless gun, mortar, light mortar or launcher.
 - f. Any firearm of which the barrel length has been altered without permission of the Registrar.
 - g. An antique firearm.
 - h. A deactivated firearm
 - i. Any firearm of which the serial number or any other identification mark has been changed or removed without the written permission by the Registrar.

Devices not regarded as firearms (Section 5)

6. Which of the following are not regarded as firearms: (choose 5) **(5 Marks)**
- a. Any fully automatic firearm
 - b. An airgun
 - c. Any gun, cannon, recoilless gun, mortar, light mortar or launcher manufactured to fire a rocket, grenade, self-propelled grenade and bomb or explosive device.
 - d. Any explosive powered tool manufactured specifically for the use in industrial application, including line-throwing gnus and impex-type building pistols.
 - e. Any frame, body or barrel of such a fully automatic firearm, gun, cannon, recoilless gun, mortar, light mortar or launcher.
 - f. Any firearm of which the barrel length has been altered without permission of the Registrar.
 - g. An antique firearm.
 - h. A deactivated firearm
 - i. Any firearm of which the serial number or any other identification mark has been changed or removed without the written permission by the Registrar.
 - j. Any captive bolt gun manufactured for the use in an abattoir in the humane killing of animals.

Competency certificates, licences, permits and authorisations (Section 6)

7. Who may issue a competency certificate? **(1 Mark)**
-

8. May you apply for a licence without a competency certificate? **(1 Mark)**
-

Competency certificates (Section 9)

9. How old should you be to apply for a competency certificate? **(1 Mark)**
-

10. Are the following statements true or false? **(2 Marks)**

A person can apply for a competency certificate if:		TRUE	FALSE
a.	The person has been declared unfit to possess a firearm in terms of this Act or the previous Act.		
b.	The person successfully completed the prescribed training and practical tests regarding the safe and efficient handling of a firearm.		

11. May the Registrar allow a person under the age of 21 years to obtain a competency certificate if there are compelling reasons for such a competency certificate? **(1 Mark)**
-

12. Fill in the missing words: **(3 Marks)**

Compelling reasons contemplated in paragraph (a) may include the fact that the applicant conducts a business, is _____, a dedicated hunter, a _____ or a _____

13. How long is a competency certificate valid for? **(1 Mark)**

Licence to possess a firearm for self defence (Section 13)

14. How many licences may you hold for self defence? **(1 Mark)**

15. List two (2) types of firearms that may be licensed for self defence. **(2 Marks)**

16. Fill in the missing words: **(2 Marks)**

The Registrar may issue a licence under this section to any natural person who:

- a. Requires a licence for _____.
- b. Cannot reasonably satisfy that needs by means other than the _____ of a firearm.

The holder of a licence may allow another person to use the firearm (Section 22)

17. May you allow another person to use your firearm under your direct supervision and for a lawful purpose? **(1 Mark)**

Renewal of a firearm licence (Section 24)

18. How long before the expiry of your licence should you apply for the renewal thereof? **(1 Mark)**

19. Fill in the missing words: **(2 Marks)**

No application for the renewal of a license may be granted unless the applicant shows that he or she has _____ to comply with the _____ for the license in terms of this Act.

Notification of change of address (Section 25)

20. Within what period should you notify the Registrar of change of address? **(1 Mark)**

21. Within what period should the Registrar notify the above person of receipt of a notice of change of address? **(1 Mark)**

Period of validity of a licence or permit (Section 27)

22. What is the validity period for the following? **(5 Marks)**

a.	Licence to possess a firearm for self-defence.	
b.	Licence to possess a firearm for occasional hunting.	
c.	Licence to possess a restricted firearm for self defence.	
d.	Licence to possess a firearm for dedicated sport shooting.	
e.	Licence to possess ammunition in a private collection.	

Defaced, lost or stolen licences, permits and authorisations (Section 29)

23. Within which stipulated period must you inform the Registrar of loss or theft of a licence, permit or authorisation? **(1 Mark)**

24. Within which stipulated period must you apply for a copy of a licence, permit or authorisation if such is lost or stolen? **(1 Mark)**

Carrying of firearms in a public place (Section 84)

25. How should a handgun be carried in a public place? List 3. **(3 Marks)**

26. How should a rifle or shotgun be carried in a public place? **(1 Mark)**

Prohibition of possession of ammunition (Section 90)

27. Are the following statements true or false? **(2 Marks)**

No person may possess any ammunition unless he or she:

TRUE

FALSE

a.	Holds a licence in respect of a firearm capable of discharging that ammunition.		
b.	Holds a permit to possess ammunition.		

Restrictions on possession of ammunition (Section 91)

28. How many cartridges may you have in your possession? **(1 Mark)**

29. Fill in the missing words: **(4 Marks)**

Section 91(2) the limitation in Subsection (1) does not apply to:

*The holder of a license to possess a firearm issued in terms of this Act in respect of _____
bought and discharged at an _____.*

Declaration by the Registrar of a person as unfit to possess a firearm (Section 102)

30. Are the following statements true or false? **(2 Marks)**

The Registrar may declare a person unfit to possess a firearm if, on the grounds of information contained in a statement under oath or affirmation including a statement by any person called as a witness, if it appears that:

	TRUE	FALSE
a. A final protection order has been issued against such a person in terms of the Domestic Violence Act 1998 (Act no. 116 of 1998).		
b. The person has provided information required in terms of this Act, which is false or misleading.		

31. Fill in the missing words: **(3 Marks)**

A declaration under Subsection (1) may only be issued if the Registrar:

*Has given that person a _____ to advance reasons as to why
the _____ should not be issued.*

Declaration by court of a person to be unfit to possess a firearm (Section 103)

32. Fill in the missing words: **(7 Marks)**

Unless the court determines otherwise, a person becomes unfit to possess a firearm if convicted of:

- The _____ of a firearm or ammunition.
- Any offence involving _____, sexual abuse or _____, for which the accused is sentenced to period of imprisonment without the option of a fine.
- Any offence involving sabotage, _____, public violence, _____, intimidation, rape, kidnapping or _____.

33. Unless a determination that a person is not unfit to possess a firearm has been made in terms of Subsection (1), a notice contemplated in Subsection (3) must be accompanied by a court order for the immediate search for and seizure of: (Section 103(4)). List 3. **(3 Marks)**

Effects of declaration (Section 104)

34. If a person is declared unfit to possess a firearm in terms of Section 102 or 103, what must the person surrender to the nearest police station within 24 hour? **(3 Marks)**

35. Within how many days should you surrender your firearms to a registered dealer, if your application for a firearm licence or the appeal thereof was unsuccessful? **(1 Mark)**

36. After how many years, if being declared unfit to possess a firearm, may a person apply for a new competency certificate? **(1 Mark)**

Duty to comply with the request of police official or authorised person (Section 107)

37. Fill in the missing words: **(3 Marks)**

Any person who carries with him or her a firearm must at the request of a police official or any person authorized by the Registrar produce the _____, _____ or _____ as the case may be, in respect of such firearm for inspection.

38. If a person fails to comply with subsection (1) and (2), may the police official seize the firearms without a warrant and keep the firearm in custody until the license, permit or authorization is produced? **(1 Mark)**

Request for information (Section 108)

39. A police official who has reasonable grounds to believe that a person has or recently had a firearm or ammunition in his or her possession, may request the following from the person: **(4 Marks)**

Body prints and bodily samples (Section 113)

40. Fill in the missing words: **(3 Marks)**

Any police official may without a warrant take the fingerprints, palm-prints, footprints and bodily samples of a person or a group of persons or may cause any such prints or samples to be taken, if:

- a) There are reasonable grounds to suspect that that person or that one or more of the persons in that group has committed an offence punishable with imprisonment for a period of _____ or longer; and
- b) There are reasonable grounds to believe that the prints or samples or the results of an examination thereof, will be of value in the investigation excluding or including one or more of the persons as a _____ of the offence.

41. Bodily samples to be taken from the body of a person, may only be taken by whom? **(1 Mark)**

Ballistic testing (Section 114)

42. May a police official seize, test-fire and examine firearms or ammunition if there are reasonable grounds to suspect that one or more firearms had been used in the commission of an offence which is punishable in terms of this Act with imprisonment for a period of five years or longer? **(1 Mark)**

43. If it is clear that the firearm or ammunition will not be of value as evidence, what should the person who has control over the seized firearm or ammunition do in terms of this section? **(1 Mark)**

Inspection, search and seizure for inquiry or investigation (with special warrant) (Section 115)

44. Fill in the missing words: **(2 Marks)**

For purposes of an inquiry or investigation relating to the application of this Act and subject to subsection (4), the Registrar or any person authorized in writing by the Registrar may:

- a) At any reasonable time and without prior notice, enter any _____ or industrial premises; or
- b) At any reasonable time and without prior notice, enter any _____ on or in which anything relating to the subject-matter of the inquiry or investigation is or is suspected to be.

45. Any entry, upon inspection of or search of any premises or dwelling, or questioning of any person, in terms of this section must be carried out how? **(1 Mark)**
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46. A warrant may only be issued if it appears from evidence under oath or on affirmation that there are reasonable grounds to suspect that anything referred to in subsection (2) is or may be on the premises or in the dwelling in question. What information should the evidence contain? **(4 Marks)**
-
-
-
-

Presumption of possession of firearm or ammunition (Section 117)

47. Fill in the missing words: **(3 Marks)**

For the purposes of this section “residential premises” does not include a hotel, hostel, or an apartment building, but includes a room or _____ in a _____, a room in a hostel and an _____ in an apartment building.

48. **Whenever a person is charged in terms of this Act with an offence of which the possession of a firearm or ammunition is an element, which of the following circumstances, in the absence of evidence to the contrary which raises reasonable doubt, will be sufficient evidence of possession by that person of the firearm or ammunition where it is proved that the firearm or ammunition was found? (5 Marks)**

- A. In or on a vehicle and the person was, at the time the driver of the vehicle.
- B. In the cargo of a vessel and the person was, at the time the consignor of any goods in or among which the firearm or ammunition was found.
- C. In a prescribed lock up safe, according to the Act.
- D. On residential premises and the person, was at that time in control of such premises, and over the age of 16 years and ordinarily resident at such premises.
- E. On your morning jogging route.
- F. In a river where you were fishing last year.
- G. In a place on an aircraft or vessel where the circumstances indicate that the firearm or ammunition should have been visible to no one besides the person.
- H. On premises other than residential premises and the person was, at the time ordinarily employed on the premises.

Presumption of failure to take reasonable steps (Section 119)

49. Fill in the missing words: **(3 Marks)**

Whenever a person is charged in terms of this Act with an offence of failing to take reasonable steps to ensure that no _____ or _____ is brought onto premises, a vehicle, a vessel or an aircraft under his or her ownership or control in contravention of this Act, proof that the firearm or ammunition was brought onto the premises, a vehicle, a vessel or an aircraft under his or her ownership or control, will in the absence of evidence to the contrary which raises reasonable doubt, be sufficient that he or she _____ to take such reasonable steps.

Offences, penalties and administrative fines (Section 120)

50. May you have control of a loaded firearm, an antique firearm or an airgun while under the influence of alcohol or a substance which has an intoxicating or narcotic effect? **(1 Mark)**

51. Would you be guilty of an offence if you fail to lock the firearm away in a prescribed safe or strongroom? **(1 Mark)**

52. May you use a competency certificate issued in the name of another person to procure possession of a firearm or ammunition? **(1 Mark)**

53. If your firearm is lost, stolen or destroyed, within what period must you report such loss, theft to the South African Police? **1 Mark)**

Right of appeal (Section 133)

54. Who has the right of appeal? **(4 Marks)**

55. Subject to the provisions of this Act, is any person excused from complying with any provisions of this Act on the ground that an appeal is pending in terms of this section? **1 Mark)**

Regulations – Definitions

56. Give the definition of the following word: **(1 Mark)**

Immediately:

57. Give the definition of the following word: **(1 Mark)**

Main firearm component:

Safe custody of firearms and ammunition (Regulation 86)

58. Where should a firearm be stored if it is not under your direct supervision or physical control? **(1 Mark)**
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59. Fill in the missing words: **(6 Marks)**

A lock-away safe, apparatus, device and instrument for safe custody of a firearm or ammunition, must to the satisfaction of the Registrar, comply with the following requirements:

- a) Be manufactured of steel of at least _____.
- b) Be capable of _____ or _____ the firearm concerned wholly.
- c) Have an effective integral _____ mechanism.
- d) Have a hinge mechanism for the cover or lid thereof, which shall ensure that when the _____ thereof is removed, the cover or lid shall not be capable of being opened or removed.

Surrendering of firearms and ammunition (Regulation 94)

60. Who may surrender a firearm and ammunition? **(2 Marks)**
-
-

61. When you surrender a firearm, what documentation must accompany the firearm? **(4 Marks)**
-
-
-
-

62. What proof will you receive that the firearm was surrendered? **(1 Mark)**
-

Deferment of licences, permits or authorisations in case of theft or loss of firearm (Regulation 99)

63. Fill in the missing words: **(3 Marks)**

For the purpose of this regulation “defer” means deferred or partially deferred, resulting in the operation of the _____, _____ or authorization applicable to the firearm being _____ until a future date.

64. Is the following statement true or false? **(1 Mark)**

The holder of a deferred license, permit or authorization is obliged to ensure that the Central Firearms Register is at all times notified in writing of any permanent change to his or her existing postal or residential address.

65. Within how many days after recovery of the relevant firearm should the Registrar notify the holder of a deferred licence of the recovered firearm? **(1 Mark)**

Change of address (Regulation 100)

66. Fill in the missing words: **(2 Marks)**

With every notification for a change of the physical address, the relevant Designated Firearms Officer must ensure that the _____ facilities at the new address complies with the applicable provision in Regulation 86.

Change of circumstances (Regulation 107)

67. Fill in the missing words: **(3 Marks)**

When the replacement of a responsible person as contemplated in Section 7(4) of the Act occurs, the juristic person must notify the Registrar thereof by submitting the duly completed applicable form together with a copy of the _____ and a set of _____ of the newly nominated person, as well as, documentary proof that the person may _____ act on behalf of the juristic person.

TOTAL _____
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